

26STCV06410 26STCV06410

County: los-angeles

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Case Number: 26STCV06410 Hearing Date: July 29, 2026 Dept: 732

Carey Booker v. Center of Toxicology and Environmental Health, Inc..., et al.

Wednesday, July 29, 2026

CASE NUMBER: 26STCV06410

OPPOSED

Defendants Montrose Environmental Group, Inc. and Center of Toxicology and Environmental Health, Inc.'s Demurrer to the First Amended Complaint

Facts: This is an action for employment discrimination. The First Amended Complaint ("FAC") alleges as follows. Plaintiff Carey Booker ("Plaintiff") was the only African-American employed by Defendants Montrose Environmental Group, Inc. and Center of Toxicology and Environmental Health, Inc. ("Defendants") to work on a certain project in Valencia, California. (FAC ¶¶ 10–15.) After Plaintiff reported an incident in which another employee appeared intoxicated, project management confronted Plaintiff with false allegations from staff at the hotel where employees were housed that charged Plaintiff with intoxication, inappropriate touching, and purchasing alcohol for minors. (FAC ¶¶ 17–19.) Rather than perform an investigation or credit Plaintiff's denials, Defendants terminated Plaintiff's employment. (FAC ¶¶ 20–28.)

Procedural History: Plaintiff filed the original Complaint on February 26, 2026, and filed the FAC on March 6, 2026, alleging five causes of action:

FEHA Race Discrimination

Lab. Code § 1102.5 Retaliation

Wrongful Termination

Defamation

Failure to Provide Rest Days

Defendants filed the present demurrer on April 27, 2026.

Plaintiff filed an opposition on July 16, 2026.

Defendants filed a reply on July 22, 2026.

Analysis

DEMURRER

A demurrer should be sustained only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Pro., §§ 430.30, et seq.) In particular, as is relevant here, a court should sustain a demurrer if a complaint does not allege facts that are legally sufficient to constitute a cause of action. (See id., § 430.10, subd. (e).) As the Supreme Court held in *Blank v. Kirwan* (1985) Cal.3d 311: “We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. . . . Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (Id. at p. 318; see also *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 [“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. [Citation.]”])

“In determining whether the complaint is sufficient as against the demurrer ... if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated.” (*Gressley v. Williams* (1961) 193 Cal.App.2d 636, 639.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) Such demurrers “are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (*Mahan v. Charles W. Chan Insurance Agency, Inc.* (2017) 14 Cal.App.5th 841, 848.)

A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment. (*Schifando v. City of Los Angeles*, supra, 31 Cal.4th at p. 1081.) The demurrer also may be sustained without leave to amend where the nature of the defects and previous unsuccessful attempts to plead render it probable plaintiff cannot state a cause of action. (*Krawitz v. Rusch* (1989) 209 Cal.App.3d 957, 967.)

Defendants Montrose Environmental Group, Inc. and Center of Toxicology and Environmental Health, Inc. (“Defendants”) demurred to the fourth cause of action for defamation contained in the First Amended Complaint (“FAC”) of Plaintiff Carey Booker (“Plaintiff”) on the grounds that the claim is time-barred. (Demurrer at pp. 3–4.)

The time to bring an action for defamation is within one year of the defamatory publication. (Code Civ. Proc. § 340, subd. (c).) “As a general rule a cause of action for libel accrues when the defamatory matter is published.” (*Schneider v. United Airlines, Inc.* (1989) 208 Cal.App.3d 71, 76.)

Here, the FAC alleges the defamatory matter to consist of “statements to [Defendants’] management and decision-makers asserting that Plaintiff engaged in improper and potentially unlawful conduct, including allegations that he attempted to

purchase alcohol for an underage individual, behaved inappropriately toward hotel staff, or attempted to leave the hotel while intoxicated.” (FAC ¶ 56.) The FAC alleges that Plaintiff learned of these statements prior to his termination in August 2024, and that they formed Defendants’ asserted basis for his termination. (FAC ¶¶ 19, 24.) Thus under the one-year limitations period, any defamation claim based on these statements would have to be brought by August 2025. Because the Complaint here was not filed until February 2026, the defamation claim is time-barred as pleaded.

Plaintiff in opposition argues that the facts pleaded do not foreclose republication of the defamatory matters within the limitations period, and the FAC contains a reference to republication. (Opposition at pp. 3–4.) But while the FAC contains an allegation that Plaintiff suffered harm as a result of “Defendants’ publication and republication of these false statements” (FAC ¶ 61), there is no allegation of publication or republication that post-dates Plaintiff’s August 2024 termination. Although Plaintiff argues that the cause of action may be tolled by delayed discovery (Opposition at p. 5), the facts establishing delayed discovery tolling must be pleaded with specificity. (See *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808.) Plaintiff alleges neither discovery-rule tolling nor facts justifying its application. And while Plaintiff also argues that compelled self-republication may support a claim for defamation within the limitations period (Opposition at p. 5), again, no such theory is pleaded in the FAC.

Accordingly, the demurrer is SUSTAINED as to the fourth cause of action, with leave to amend. Any amended pleading shall be filed within 20 days of this order.

Superior Court of California

County of Los Angeles

Department 732

CAREY BOOKER.,

Plaintiff,

v.

MONTROSE ENVIRONMENTAL GROUP, INC., et al.,

Defendants.

Case No.: 26STCV06410

Hearing Date: July 29, 2026

[TENTATIVE] RULING RE:

Defendants Montrose Environmental Group, Inc. and Center of Toxicology and Environmental Health, Inc.’s Demurrer to the First Amended Complaint

Defendants Montrose Environmental Group, Inc. and Center of Toxicology and Environmental Health, Inc.'s Demurrer to the First Amended Complaint is SUSTAINED as to the fourth cause of action for defamation with leave to amend. Any amended pleading shall be filed within 20 days of this order.

Defendants to give notice.

Dated: July 29, 2026

Hon. Richard S. Kemalyan

Judge of the Superior Court